Hour and Public Contracts Division, proposed to amend 29 CFR, Part 522, for the purpose of providing: (1) An increase in wage rates for all learners in the leather glove branch, the woven or knit fabric branch, and the knitted glove branch of the Glove Industry by five cents; (2) an increase in wage rates for learners in the work glove branch of the industry to 83 and 90 cents, in lieu of 77½ cents and 85 cents presently provided; and (3) for application of these amendments, as of their effective date, to learners presently employed pursuant to outstanding special certificates. The notice provided a period of fifteen days within which interested persons might submit data, views, or arguments pertaining to the proposed regulations.

No material objections were voiced in the comments received. Upon consideration of all available relevant matter, I conclude that the amendments should be adopted as proposed, with additional editorial amendments of §§ 522.60, and 522.61 to include references to § 522.66 added by this amendment.

The amendment is based on section 14 of the Fair Labor Standards Act of 1938 (52 Stat. 1068, as amended; 29 U.S.C. 214), providing in substance for the employment of learners at subminimum wage rates to the extent necessary to prevent curtailment of opportunities for employment, and is promulgated in the light of economic developments, administrative experience in the operation of the regulations since the effective date of the $1.00 an hour statutory minimum (Fair Labor Standards Amendments of 1955, 69 Stat. 711), and after consultation with interested parties in the industry.

Therefore in accordance with section 4 of the Administrative Procedure Act (60 Stat. 238; 5 U.S.C. 1003), and under the authority of section 14 of the Fair Labor Standards Act of 1938 (52 Stat. 1068, as amended; 29 U.S.C. 214), Reorganization Plan No. 6 of 1950 (3 CFR, 1950 Supp., p. 165), and General Order No. 45–A (15 F.R. 3290), 29 CFR, Part 522 is hereby amended as follows.

§ 522.60 [Amendment]

1. Section 522.60 is amended by deleting references to "§§ 522.60 through 522.65" where this appears on two occasions and inserting in lieu thereof "§§ 522.60 through 522.66".

2. The headnote and the first paragraph of § 522.61 is amended to read as follows:

§ 522.61 Applicability of §§ 522.60 through 522.66.

For purposes of §§ 522.60 through 522.66, the Glove Industry consists of the following four branches:

§ 522.65 [Amendment]

3. Paragraph (a) of § 522.65 is amended to read as follows:

(a) The subminimum rates which may be authorized in special certificates issued in the glove industry shall be not less than 85 cents an hour for the first 320 hours and not less than 95 cents an hour for the remaining 160 hours in the leather glove, woven or knit fabric glove, and knitted glove branches of the industry, and not less than 83 cents an hour for the first 320 hours and not less than 90 cents an hour for the remaining 160 hours in the work glove branch of the industry.

4. A new section designated § 522.66 is added to read as follows:

§ 522.66 Amendment of certificates previously issued.

Pursuant to § 522.8, learner certificates heretofore issued in the glove industry shall be amended to restrict the employment of learners under such certificates to the limitations on their employment under new certificates which are expressed in § 522.65.

(Sec. 14, 52 Stat. 1068, as amended; 29 U.S.C. 214)

This amendment shall take effect on May 25, 1959.

Signed at Washington, D.C., this 17th day of April 1959.

CLARENCE T. LUNDQUIST,
Administrator.

[F.R. Doc. 59-3392; Filed, Apr. 21, 1959; 8:50 a.m.]

Title 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T.D. 54834]

PART 1—CUSTOMS DISTRICTS, PORTS, AND STATIONS

Ports of Entry; Changes in the Customs Field Organization

APRIL 15, 1959.

By virtue of the authority vested in the President by section 1 of the Act of August 1, 1914, 38 Stat. 623 (19 U.S.C. 2), which was delegated to the Secretary of the Treasury by the President by Executive Order No. 10289, September 17, 1951 (3 CFR, 1951 Supp., Ch. II), the designation of Rooseveltown, New York, as a customs port of entry in Customs Collection District No. 7 (St. Lawrence), is hereby revoked and a new customs port of entry to be known as Massena, New York, is hereby designated in said District, which port shall include the township of Massena (of which Rooseveltown is a part) in the State of New York.

Section 1.1(c) of the Customs Regulations is amended by deleting "Rooseveltown (E.O. 6545, Jan. 2, 1934)." and adding "Massena (T.D. 54834)." in the column headed "Ports of entry" in District No. 7 (St. Lawrence).

The name "Tok Junction, Alaska," was changed by the Post Office Department to "Tok, Alaska," in Postal Bulletin 20114, dated November 6, 1958. To conform with this change, § 1.2(d) of the Customs Regulations is amended by substituting "Tok, Alaska" for "Tok Junction, Alaska" in the column headed "Customs Stations" in District No. 31, effective upon publication in the FEDERAL REGISTER.

(R.S. 161, 251, sec. 1, 37 Stat. 434, sec. 1, 38 Stat. 623, as amended; 5 U.S.C. 22, 19 U.S.C. 1, 2, 66)

Notice of the proposed revocation of Rooseveltown, and designation of Massena as a customs port of entry was published in the FEDERAL REGISTER of February 26, 1959 (24 F.R. 1419), pursuant to the provisions of section 4 of the Administrative Procedure Act (5 U.S.C. 1003). Consideration was given to the one objection received. Inasmuch as the change provides additional service to the public without cost, it is considered in the best interest of the public that this action be put in effect without delay. For this reason, it is found that compliance with the effective date limitations of section 4(c) of that Act serves no good purpose. The revocation of Rooseveltown, New York, as a customs port of entry and the designation of Massena, New York, as a customs port of entry in Customs Collection District No. 7 (St. Lawrence) shall therefore, be effective upon publication in the FEDERAL REGISTER (MC 192–7.1).

[SEAL] A. GILMORE FLUES,
Acting Secretary of the Treasury.

[F.R. Doc. 59-3381; Filed, Apr. 21, 1959; 8:48 a.m.]

Title 26—INTERNAL REVENUE, 1954

Chapter I—Internal Revenue Service, Department of the Treasury

SUBCHAPTER D—MISCELLANEOUS EXCISE TAXES

[T.D. 6372]

PART 40—MANUFACTURERS AND RETAILERS EXCISE TAXES

Sale of Radio and Television Receiving Sets, Phonographs, Phonograph Records, and Musical Instruments

On October 10, 1958, notice of proposed rule making with respect to regulations under sections 4141, 4142, 4151, and 4152 of the Internal Revenue Code of 1954, as amended, relating to the tax imposed on the sale of radio and television receiving sets, phonographs, combinations of any of the foregoing, phonograph records, radio and television components, and musical instruments was published in the FEDERAL REGISTER (23 F.R. 7853). After consideration of all such relevant matter as was presented by interested persons regarding the rules proposed, the regulations as so published are hereby adopted, subject to the changes set forth below:

PARAGRAPH 1. Paragraph (c)(1) of § 40.4141–1 is revised as follows:

(A) By striking "in subdivisions (ii) and (iii)" in subdivision (i) thereof and inserting in lieu thereof "in either subdivision (ii) or (iii)", and

(B) By inserting "marine," in subdivision (iii) after "commercial,".

PAR. 2. Section 40.4141–2 is revised by striking "and the regulations thereunder contained in Subpart M of this part" and